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Case Number: 26TRCV01179 Hearing Date: August 28, 2026 Dept: B

Superior

Court of California

County

of Los Angeles

Southwest

District

Torrance

Dept. B

ROMAN

FARIAS, et al.,

Plaintiffs,

Case No.:

26TRCV01179

vs.

[Tentative]

RULING

ANZA

MANAGEMENT COMPANY, et al.,

Defendants.

Hearing

Date: August

28, 2026

Moving Parties: Defendants Anza Management

Company, 128030 Praise Avenue, LLC, and J.K. Residential Services, Inc.

Responding

Party: Plaintiffs Roman Farias, et al.

(1)

Demurrer

(2)

Motion

to Strike

The Court considered the moving, opposition, and reply papers.

RULING

See Order below.

BACKGROUND

On April 1, 2026, plaintiffs Roman Farias, Ariadna Farias, Sebastian Farias, Maria Del Carmen Garcia, Regina Luna, and Renata Becerra filed a complaint against defendants Anza Management Company, 12830 Prairie Avenue, LLC HK Realty & Management, LLC, and J.K. Residential Services, Inc. for (1) constructive eviction, (2) breach of the covenant of quiet enjoyment, (3) tortious breach of implied warranty of habitability, (4) statutory breach of warranty of habitability, (5) breach of contract, (6) breach of the implied covenant of good faith and fair dealing, (7) IIED, (8) NIED, (9) unlawful, fraudulent, and unfair business acts under Bus. & Prof. Code §17200, (10) nuisance, (11) negligence, (12) negligent training and supervision, (13) negligent maintenance of the premises, (14) harassment of

tenants, (15) retaliatory conduct, (16) trespass, (17) toxic mold tort, and (18) unlawful retention of security deposit.

LEGAL AUTHORITY

Demurrer

When

considering demurrers, courts read the allegations liberally and in context. *Taylor v. City of Los Angeles Dept. of Water and Power* (2006) 144 Cal. App. 4th 1216, 1228. "A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed." *SKF Farms v. Superior Court* (1984) 153 Cal. App. 3d 902, 905. "The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action." *Hahn v. Mirda* (2007) 147 Cal. App. 4th 740, 747.

Strike

"The

court may, upon a motion . . . , or at any time in its discretion, and upon terms it deems proper: (a) Strike any irrelevant, false, or improper matter inserted in any pleading. (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court." CCP §436(b).

CCP §431.10 states:

"(a) A material allegation in a pleading is one essential to the claim or defense and which could not be stricken from the pleading without leaving it insufficient as to that claim or defense.

(b) An

immaterial allegation in a pleading is any of the following: (1) An allegation that is not essential to the statement of a claim or defense. (2)

An allegation that is neither pertinent to nor supported by an otherwise sufficient claim or defense. (3) A

demand for judgment requesting relief not supported by the allegations of the complaint or cross-complaint.

(c) An

'immaterial allegation' means 'irrelevant matter' as that term is used in Section 436."

The

grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. CCP §437.

DISCUSSION

Demurrer

Defendants

demur to each cause of action except the third cause of action for tortious breach of implied warranty of habitability and eleventh cause of action for negligence on the grounds that they fail to state sufficient facts to constitute a cause of action and are uncertain.

The

complaint alleges that plaintiffs were residing in a single-family house located at 12830 Prairie Avenue, Hawthorne.

Complaint, ¶1. Roman Farias

entered into a residential rental agreement with defendants for the occupancy of unit #103 beginning February 1, 2024, and the Farias family resided in the unit until they were forced to vacate on February 20, 2025. Id., ¶12.

Plaintiff Maria Del Carmen Garcia entered into a rental agreement for occupancy of unit #203 and resided there with her family beginning April 1, 2024 until they were forced to vacate on June 30, 2025. Id., ¶13.

The property was and continues to be untenantable. The deficiencies include (1) "effective waterproofing and weather protection," as evidenced by repeated water intrusion and flooding inside plaintiffs' units; (2) plumbing facilities that were not maintained in good working order, including leaks originating from bathroom walls and ceilings that caused water damage; (3) building components and interior surfaces affected by persistent moisture conditions that led to mold contamination and fungal growth; and (4) failure to maintain the property in a clean, sanitary, and pest-free condition, including the presence of cockroach activity and other pests. Id., ¶25. Despite repeated notifications, communications, and requests for repairs, defendants failed to adequately investigate or remediate the underlying plumbing failures and environmental

conditions affecting the property. *Id.*, ¶27.

First cause of action for constructive
eviction

“A constructive eviction occurs when the acts or omissions to act of a landlord, or any disturbance or interference with the tenant’s possession by the landlord, renders the premises, or a substantial portion thereof, unfit for the purposes for which they were leased, or has the effect of depriving the tenant for a substantial period of time of the beneficial enjoyment or use of the premises.”

Groh v. Kover’s Bull Pen, Inc. (1963) 221 Cal. App. 2d 611, 614
(citation omitted).

Defendants

argue that this claim, the fourteenth cause of action for harassment of tenants, and fifteenth cause of action of retaliation are duplicative of each other. Defendants also argue that the allegations are conclusory as plaintiffs fail to plead with specificity any factual information regarding any notice to defendants to correct the defects and amount of time to correct said defects.

Defendants also assert that plaintiffs allege that as to unit 103, there was a flooding event and that their relocation was temporary. Thus, defendants argue, plaintiffs do not allege that they surrendered possession of the property. As to unit 203, defendants contend that although plaintiffs allege that they vacated on June 30, 2025, they did not allege as to when “their deprivation of beneficial enjoyment began.” Defendants also contend that this claim is duplicative of the cause of action for negligence.

In
opposition, plaintiffs argue that the allegations are sufficient.

The Court finds that the allegations are sufficient to meet the elements and that the elements are different than the other two causes of action.

The demurrer is OVERRULED.

Second cause of action for breach
of the covenant of quiet enjoyment

“In

the absence of language to the contrary, every lease contains an implied covenant of quiet enjoyment, whereby the landlord impliedly covenants that the tenant shall have quiet enjoyment and possession of the premises.” *Andrews v. Mobile Aire Estates* (2005) 125 Cal. App. 4th 578, 588 (citations omitted).

The covenant “insulates the tenant against any act or omission on the part of the landlord, or anyone claiming under him, which interferes with a tenant’s right to use and enjoy the premises for the purposes contemplated by the tenancy.” *Id.* (citations omitted). “The implied covenant of quiet enjoyment is partially codified in Civil Code section 1927 . . . which provides: ‘An agreement to let upon hire binds the letter to secure to the hirer the quiet possession of the thing hired during the term of the hiring. . . .’” *Id.* at 588-89.

“California case law

has recognized a tort cause of action for wrongful eviction, including breaches of the covenant of quiet enjoyment that compel a tenant to vacate, whereas breach of covenant of quiet enjoyment that does not result in a wrongful constructive or actual eviction is a breach of contract.” *Bevis v. Terrace View Partners, LP* (2019) 33 Cal. App. 5th 230, 250 (citation omitted).

“Minor

inconveniences and annoyances are not actionable breaches of the covenant of quiet enjoyment. To be actionable, the landlord’s act or omission must substantially interfere with the tenant’s right to use and enjoy the premises for the purposes contemplated by the tenancy.” *Andrews v. Mobile Aire Estates* (2005) 125 Cal. App. 4th 578, 589.

Defendants

argue the same as under the first cause of action that plaintiffs have not sufficiently alleged actual or constructive eviction.

In

opposition, plaintiffs argue that the allegations are sufficient.

The Court finds that the allegations are sufficient to

meet the elements.

The demurrer is OVERRULED.

Fourth cause of action for
statutory breach of warranty of habitability (Civil Code §§1941, 1941.1, and
1942.4)

Defendants argue that this claim and the seventeenth cause
of action for “toxic mold tort” are duplicative of the third cause of action
for tortious breach of implied warranty of habitability. Defendants assert that the same substandard
conditions are alleged, including leaks, mold, and infrastructure issues.

In
opposition, plaintiffs argue that the allegations are sufficient.

The
Court finds that the allegations are sufficient to meet the elements and the
cause of action is not duplicative of the third cause of action for “tortious
breach of the implied warranty of habitability.” The third cause of action arises out of a
duty implied under the rental agreements.
Under the third cause of action the complaint alleges “[i]mplied in each
rental agreement in California, oral or written, is a warranty of habitability,
which requires landlords to maintain their premises in a habitable
condition.” Complaint, ¶104. The fourth cause of action arises out of
statute, which is an independent basis of liability.

The demurrer is OVERRULED.

Fifth cause of action for breach of
contract

“[T]he
elements of a cause of action for breach of contract are (1) the existence of
the contract, (2) plaintiff's performance or excuse for nonperformance, (3)
defendant's breach, and (4) the resulting damages to the plaintiff.” Oasis West Realty, LLC v. Goldman
(2011) 51 Cal. 4th 811, 821 (citation omitted).
If a breach of contract claim “is based on alleged breach of a written
contract, the terms must be set out verbatim in the body of the complaint or a
copy of the written agreement must be attached and incorporated by reference.” Harris v. Rudin, Richman & Appel

(1999) 74 Cal. App. 4th 299, 307 (citation omitted).

Defendants

argue that this claim is duplicative of the sixth cause of action and the same allegations are covered by several of the other causes of action. Defendants also argue that plaintiffs fail to allege the date when they entered into an agreement to lease their units or whether such agreements were written, oral, or implied. Defendants note that plaintiffs fail to attach copies of the rental agreements or plead the terms.

In

opposition, plaintiffs argue that the allegations are sufficient.

The

Court finds that the allegations are insufficient to meet the elements. Plaintiffs fail to allege whether the lease agreements were written, oral, or implied.

Further, they do not attach copies of any lease agreement or allege the terms verbatim.

The demurrer is SUSTAINED WITH LEAVE TO AMEND.

Sixth cause of action for breach of
the implied covenant of good faith and fair dealing

Defendants

argue that this claim is duplicative of the fifth cause of action and the same allegations are covered by several of the other causes of action. Defendants also contend that the allegations "do not go beyond the statement of a mere contract breach" and rely on the same alleged act.

In

opposition, plaintiffs argue that the allegations are sufficient.

The

Court finds that the allegations are sufficient to meet the elements. The cause of action differs from the fifth cause of action in that it alleges that continued rent collection, inadequate responses to repeated repair requests, interference with occupancy, and conduct contributing to plaintiffs' displacement supports that defendants frustrated the benefits of the lease agreements.

The demurrer is OVERRULED.

Seventh cause of action for IIED

The

tort of intentional infliction of emotional distress is comprised of three elements: (1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff suffered severe or extreme emotional distress; and (3) the plaintiff's injuries were actually and proximately caused by the defendant's outrageous conduct. *McMahon v. Craig* (2009) 176 Cal. App. 4th 222, 234. "In order to meet the first requirement of the tort, the alleged conduct . . . must be so extreme as to exceed all bounds of that usually tolerated in a civilized community." *Id.* at 234-35. Whether conduct is sufficiently extreme and outrageous so as to be actionable may be determined as a matter of law. *Cochran v. Cochran* (1998) 65 Cal. App. 4th 488, 494. To avoid demurrer, the plaintiff must allege such acts with great specificity. *Yau v. Santa Margarita Ford, Inc.* (2014) 229 Cal. App. 4th 144, 160-61.

Defendants

argue that the allegations are conclusory and fail to show that the alleged conduct was extreme and outrageous with the intention of causing emotional distress. Defendants also contend that defendants are business entities and that plaintiffs fail to allege any specific facts to support a theory of respondeat superior or ratification.

In

opposition, plaintiffs argue that the allegations are sufficient.

The

Court finds that the allegations are sufficient to meet the elements.

The demurrer is OVERRULED.

Eighth cause of action for NIED

"At the outset we must remind ourselves that, however handy the acronym, as our Supreme Court has made abundantly clear, there is no such thing as the independent tort of negligent infliction of emotional

distress.” *Lawson v. Management Activities, Inc.* (1999) 69 Cal. App. 4th 652, 656 (citations omitted). Plaintiffs are seeking emotional distress damages under the eleventh cause of action for negligence.

The demurrer is SUSTAINED WITHOUT LEAVE TO AMEND.

Ninth cause of action for unlawful, fraudulent, and unfair business acts under Bus. & Prof. Code §17200

The purpose of the Unfair Business Practices Act (Bus. & Prof. Code §17000, et. seq.) is to “safeguard the public against the creation or perpetuation of monopolies and to foster and encourage competition, by prohibiting unfair, dishonest, deceptive, destructive, fraudulent and discriminatory practices by which fair and honest competition is destroyed or prevented.” Bus. & Prof. Code §17001. The Unfair Business Practices Act shall include “any unlawful, unfair or fraudulent business act or practice.” Bus. & Prof. Code §17200. The Unfair Business Practices Act is a tool with which to enjoin deceptive or sharp practices. *Samura v. Kaiser Foundation Health Plan, Inc.* (1993) 17 Cal. App. 4th 1284, 1299, fn. 6. A plaintiff alleging unfair business practices under these statutes must state with reasonable particularity the facts supporting the statutory elements of the violation. *Khoury v. Maly's of California, Inc.* (1993) 14 Cal. App. 4th 612, 619.

Defendants argue that the allegations are conclusory and that plaintiffs fail to plead with particularity.

In opposition, plaintiffs argue that the allegations are sufficient.

The Court finds that the allegations are sufficient.

The demurrer is OVERRULED.

Tenth cause of action for nuisance

Defendants argue that this claim is a “clone” of the negligence cause of action.

The

Court finds that this claim is duplicative of the eleventh cause of action for negligence. “Where negligence and nuisance causes of action rely on the same facts about lack of due care, the nuisance claim is a negligence claim.” Melton v. Boustred (2010) 183 Cal. App. 4th 521, 542. This claim merely restates the cause of action for negligence and is thus duplicative.

The demurrer is SUSTAINED WITHOUT LEAVE TO AMEND.

Twelfth cause of action for negligent training and supervision

The

elements of a negligent training cause of action are: (1) the employer’s hiring an employee; (2) who is incompetent or unfit; (3) employer had reason to believe undue risk of harm would exist because of the employment; and (4) the harm occurs. Federico v. Superior Court (1997) 59 Cal. App. 4th 1207, 1213-1214. The elements of a negligent supervision cause of action are: (1) the employer’s supervising an employee; (2) who is incompetent or unfit; (3) employer had reason to believe undue risk of harm would exist because of the employment; and (4) harm occurs. Id.

The

complaint alleges that defendants had a duty to plaintiffs to properly hire, train, and supervise their agents, employees, and contractors responsible for maintenance, repairs, communication, and compliance with landlord-tenant obligations, including adherence to applicable health and safety codes. Complaint, ¶171. Defendants breached that duty by failing to ensure that their staff were competent, adequately trained, or properly supervised, and by permitting personnel to engage in conduct that resulted in unresolved leaks, unsafe electrical conditions, loss of water service, delayed repairs, closed work orders without actual remediation, unsafe walking surfaces, exposed mold and infrastructure, dismissive or hostile communication toward plaintiffs and constant harassment against plaintiffs. Id., ¶172.

Defendants

argue that this claim and the thirteenth cause of action for negligent

maintenance are duplicative of the eleventh cause of action for negligence. Defendants also argue that the allegations are conclusory as plaintiffs do not name the “incompetent employees, or how they were incompetent or unfit for employment” or how the training was deficient or that someone in a supervisory position had prior knowledge of their propensity “to do the bad act, or how they should have known such propensity.”

In
opposition, plaintiffs argue that the allegations are sufficient.

The
Court finds that the allegations are conclusory.

The
demurrer is SUSTAINED WITH LEAVE TO AMEND.

Thirteenth cause of action for negligent
maintenance of the premises

The complaint alleges that defendants had a duty to plaintiffs to properly hire, train, and supervise their agents, employees, and contractors responsible for maintenance, repairs, communication, and compliance with landlord-tenant obligations, including adherence to applicable health and safety codes. Complaint, ¶171. Defendants breached that duty by failing to ensure that their staff were competent, adequately trained, or properly supervised, and by permitting personnel to engage in conduct that resulted in unresolved leaks, unsafe electrical conditions, loss of water service, delayed repairs, closed work orders without actual remediation, unsafe walking surfaces, exposed mold and infrastructure, dismissive or hostile communication toward plaintiffs and constant harassment against plaintiffs. Id., ¶172.

Defendants
argue that this claim and the twelfth cause of action for negligent training and supervision are duplicative of the eleventh cause of action.

The
Court finds that the allegations are subsumed under the eleventh cause of action for negligence. Both allege negligent maintenance. This claim is duplicative. Compare Complaint, 164 (“negligent maintenance”) and 178 (“failing to maintain”).

The demurrer is SUSTAINED WITHOUT LEAVE TO AMEND.

Fourteenth cause of action for harassment
of tenants

Defendants

argue that this claim, the first cause of action for constructive eviction, and
fifteenth cause of action of retaliation are duplicative of each other.

In
opposition, plaintiffs argue that the allegations are sufficient.

The Court finds that the allegations are sufficient to
meet the elements and that the elements are different than the other two causes
of action.

The demurrer is OVERRULED

Fifteenth cause of action for retaliatory
conduct

Under

Civil Code §1942.5, "(a) If the lessor retaliates against the lessee because of
the exercise by the lessee of the lessee's rights under this chapter or because
of the lessee's complaint to an appropriate agency as to tenantability of a
dwelling, and if the lessee of a dwelling is not in default as to the payment
of rent, the lessor may not recover possession of a dwelling in any action or
proceeding, cause the lessee to quit involuntarily, increase the rent, or
decrease any service within 180 days of any of the following:

(1)

After the date upon which the lessee, in good faith, has given notice pursuant
to Section 1942, . . . , or has made an oral complaint to the lessor regarding
tenantability.

(2)

After the date upon which the lessee, in good faith, has filed a written
complaint, or an oral complaint which is registered or otherwise recorded in
writing, with an appropriate agency, of which the lessor has notice, for the

purpose of obtaining correction of a condition relating to tenantability.

(3)

After the date of an inspection or issuance of a citation, resulting from a complaint described in paragraph (2) of which the lessor did not have notice. . .”

Civil

Code “[s]ection 1942.5 is a remedial statute aimed at protecting tenants from certain types of abuses. It is to be ‘liberally construed to effect its objectives and to suppress, not encourage, the mischief at which it was directed.’”
Barela v. Superior Court (1981) 30 Cal.3d 244, 251 (citation omitted).

Defendants

argue that this claim, the first cause of action for constructive eviction, and fourteenth cause of action of harassment are duplicative of each other.

In opposition, plaintiffs argue that the allegations are sufficient.

The

Court finds that the allegations are sufficient to meet the elements.

The demurrer is OVERRULED.

Sixteenth cause of action for trespass

“The elements for trespass are: (1) the plaintiff’s ownership, or control, of the property; (2) the defendant’s intentional, reckless, or negligent entry onto the property; (3) lack of permission for the entry or acts in excess of permission; (4) harm; and (5) the defendant’s conduct was a substantial factor in causing the harm.” Ralphs Grocery Co. v. Victory Consultants, Inc. (2017) 17 Cal. App. 5th 245, 262 (citing to CACI 2000).

The complaint alleges that defendants, and/or their agents, servants, employees, and authorized representatives, repeatedly and unlawfully entered the property without prior notice, consent, or legal

justification, including a documented incident on June 10, 2025 around 12:30 p.m., which plaintiffs were not made aware of until after the unauthorized intrusion occurred. The unauthorized intrusions invaded plaintiffs' privacy and substantially and unreasonably interfered with plaintiffs' right to exclusive possession and quiet enjoyment of the property. Complaint, ¶202.

Defendants argue that plaintiffs do not meet the second elements as they do not specify who entered the property on behalf of defendants.

In opposition, plaintiffs argue the allegations are sufficient and that such knowledge is "principally within Defendants' knowledge."

The Court finds that the allegations are sufficient to meet the elements, including identifying who entered the property as defendants and/or agents, servants, employees, and authorized representatives. Plaintiffs are not required to plead evidentiary facts. Such information is presumably within the knowledge of defendants and/or can be obtained through discovery.

The demurrer is OVERRULED.

Seventeenth cause of action for toxic mold tort

There is no distinct, standalone common law cause of action identified as "toxic mold tort." The allegations are covered under the cause of action for negligence and other claims.

The demurrer is SUSTAINED WITHOUT LEAVE TO AMEND.

Eighteenth cause of action for unlawful retention of security deposit

Defendants assert that this claim is predicated on Civil Code §1950.5, which applies to security deposits pursuant to a lease agreement and pertains only to landlords. Defendants argues that

plaintiffs do not attach a copy of the lease agreement showing that they entered into an agreement with one or all of defendants or specify which defendant is the landlord or evidence a contractual duty to pay rent to the landlord.

In

opposition, plaintiffs argue that the allegations are sufficient but requests leave to clarify the responsible landlord, the amount and recipient of each deposit, the termination of each tenancy, and the circumstances of nonreturn.

The

Court finds that the allegations are insufficient to meet the elements.

The demurrer is SUSTAINED WITH LEAVE TO AMEND.

Motion to Strike

Defendants request an order striking paras. 6, 28, 75, 77, 98 (2nd cause of action), 101 (2nd cause of action), 110 (3rd cause of action), 137, 139 (7th cause of action), 160 (10th cause of action), 168 (11th cause of action), 182 (13th cause of action), 200 (15th cause of action), 205 (16th cause of action), 216 (17th cause of action) and prayer for injunctive relief and punitive damages.

Civil

Code §3294 authorizes the recovery of punitive damages in non-contract cases where “the defendant has been guilty of oppression, fraud, or malice . . .

.” The Court in Taylor v. Superior

Court (1979) 24 Cal.3d 890, 894-95, found that “[s]omething more than the mere commission of a tort is always required for punitive damages. There must be circumstances of aggravation or outrage, such as spite or ‘malice,’ or a fraudulent or evil motive on the part of the defendant, or such a conscious and deliberate disregard of the interests of others that his conduct may be called willful or wanton.”

“‘Malice’

means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” Civil Code §3294(c)(1).

As the

Court noted in *College Hospital v. Superior Court* (1994) 8 Cal.4th 704, 713, Section 3294 was amended in 1987 to require that, where malice is based on a defendant's conscious disregard of a plaintiff's rights, the conduct must be both despicable and willful. The Court in *College Hospital* held further that "despicable conduct refers to circumstances that are base, vile, or contemptible." *Id.* at 725 (citation omitted).

A

claim for punitive damages may not be based on conclusory allegations of oppression, fraud or malice, but instead must be based on factual allegations which support such a conclusion. See *Smith v. Superior Court* (1992) 10 Cal. App. 4th 1033, 1041-42 (Court of Appeal issued a peremptory writ directing trial court to issue order striking plaintiff's prayer for punitive damages because "[t]he sole basis for seeking punitive damages are . . . conclusory allegations" which were "devoid of any factual assertions supporting a conclusion [defendants] acted with oppression, fraud, or malice").

A

tenant may state a cause of action in tort against his landlord for damages resulting from a breach of the implied warranty of habitability." *Stoiber v. Honeychuck* (1980) 101 Cal. App. 3d 903, 918-19; see also *Smith v. David* (1981) 120 Cal. App. 3d 101, 112 n.3 (a tenant "may seek general and punitive damages for . . . breach of warranty [of habitability]"). The court in *Stoiber* found that plaintiff stated sufficient facts to support exemplary damages when she "alleged that defendant had actual knowledge of defective conditions in the premises including leaking sewage, deteriorated flooring, falling ceiling, leaking roof, broken windows, and other unsafe and dangerous conditions . . . [and] alleged defendants 'In maintaining said nuisance, . . . acted with full knowledge of the consequences thereof and the damage being caused to plaintiff, and their conduct was willful, oppressive and malicious.'" *Stoiber, supra*, at 920 (citation omitted).

The Court rules as follows:

The motion is MOOT as to para. 160 under the tenth cause of action in light of the ruling on the demurrer. The motion is DENIED as to the balance as to punitive damages as the allegations are sufficient to show malice.

The motion is GRANTED WITHOUT LEAVE TO AMEND as to prayer for injunctive relief, as plaintiffs no longer reside in the property.

ORDER

The demurrer is OVERRULED as to the 1st, 2nd, 4th, 6th, 7th, 9th, 14th, 15th, and 16th causes of action. The demurrer is SUSTAINED WITH TWENTY DAYS LEAVE TO AMEND as to the 5th, 12th, and 18th causes of action. The demurrer is SUSTAINED WITHOUT LEAVE TO AMEND as to the 8th, 10th, 13th, and 17th causes of action.

The motion to strike is GRANTED WITHOUT LEAVE TO AMEND as to prayer for injunctive relief. The motion is MOOT as to para. 160. The motion is DENIED as to the balance.

Defendants are to give notice of the ruling.